

Grievance Policy

NQS

7.1.2	Management systems - Systems are in place to manage risk and enable the effective management and operation of a quality service.
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National

Regulations

Regs	168	Education and care service must have policies and procedures
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Aim

To ensure that all grievances (complaints) are investigated in a timely, transparent, thorough and impartial manner, and that affected parties are advised of the outcome and their rights of appeal.

Related Policies

Educator and Management Policy

Incident, Injury, Trauma and Illness Policy

Privacy and Confidentiality Policy

Managing Breaches and Complaints/Grievances

All breaches of our Code of Conduct (including corruption, maladministration and waste of resources) and complaints or grievances from educators, staff members, families, visitors and volunteers associated with the workplace will be managed in line with our Grievance Guidelines.

This includes incidents of bullying, discrimination and harassment at the Service. Our Service takes any incident of (alleged) bullying, discrimination or harassment very seriously because it can cause significant health and wellbeing issues for employees.

Grievances can occur in all workplaces and handling them properly is important for maintaining a safe, healthy, harmonious and productive work environment. Documented grievance procedures are important because:

- staff and visitors need to know a process exists for receiving and managing grievances and complaints fairly, impartially, promptly and thoroughly.
- they help to ensure small issues or problems do not escalate.
- supervisors and managers need to be aware of issues causing conflict.
- documentation provides evidence and a record of the grievance and the outcome.
- complaints facilitate continuous improvement of Service operations.

Grievance Guidelines

These guidelines explain the procedure for reporting and managing grievances, the roles and responsibilities of educators, staff and managers and the potential consequences of breaching our policies, procedures and Code of Conduct.

These guidelines are to be used to resolve a complaint, no matter who has the complaint.

If a complaint is made, only the direct issues raised in that complaint will be dealt with in the resolution of that complaint.

If a finding determines that a complaint is deemed to be made falsely or made vexatiously, then the complainant will face disciplinary procedures. The person making false or vexatious complaints may also leave themselves open to the legal proceedings for defamation.

The person who wishes to have a complaint resolved must:

- **1st STEP – attempt “self resolution” to resolve the complaint:** Within 48 hours of the incident, the person must share the issues of their complaint directly with the person/people involved (using the Self Resolution Guide – Appendix 1). Both parties should try to resolve the issue and develop solutions to ensure the problem does not happen again. Discussions should be based on the principles of privacy, confidentiality, respect and open-mindedness, will not involve other educators, staff, volunteers or visitors (eg parents) and will take place away from children.

If this step resolves the complaint, no further action is required.

If this step DOES NOT resolve the complaint, proceed to the 2nd Step for resolution.

- **2nd STEP – seek assistance to resolve the complaint:** If the person is unable to resolve the issues with the other person/people, or they do not feel comfortable raising the matter directly with the person concerned, they must put the complaint in writing (using the Complaints Notification Form - Appendix 2). This must be completed within 48 hours of their last attempt at Self Resolution or within 48 hours of the incident.

If the people involved are:

Staff / Staff OR Staff / Parent OR Parent / Parent – the Complaints notification is taken to the relevant Room Leader. If the Room Leader is unable to resolve the complaint or there is a conflict of interest, the Complaint is taken to the Director.

Staff / Director OR Parent / Director OR Committee / Director – the Complaints notification is taken to the Vice President. If the Vice President is unable to resolve the complaint or there is a conflict of interest, an external nationally accredited mediator is engaged to resolve the complaint.

- At all stages of the resolution of a complaint, all parties involved agree to adhere to our Code of Conduct and honour confidentiality during the complaints resolution process.
- If the issues of concern involve suspected or actual unlawful activity (including bullying), it must be taken to the Approved Provider or Nominated Supervisor, immediately and privately, by completing the Complaints Notification Form within 24hrs.

The person who is responsible for resolving the complaint at the 2nd Step will:

- treat the complaint seriously and deal with it as a matter of priority in a confidential and impartial manner.
- make a written account of all actions taken in the pursuit of a resolution of the complaint.
- follow the steps required in the Complaints Resolution Guidelines (using the Complaints Resolution Form - Appendix 5):
 - 1/ review the details of the complaint from the Complainant, (provided in the Complaints Notification Form – Appendix 2). Note - the complainant cannot stipulate the procedure to be used to address the complaint.
 - 2/ provide the respondent with a summary of the issues and proposed options for resolution within 24 hours of receiving the written complaint (using the Complaints Summary Form – Appendix 3)
 - 3/ seek the respondent’s feedback regarding the issues raised and proposed options for resolution (using the Respondent’s Reply Form – Appendix 4). Note, the respondent cannot stipulate the procedure to be used to address the complaint.

4/ choose the procedure to address the complaint after considering the issues and context of the complaint from both the perspective of the Complainant and the Respondent. They must properly investigate and fairly and impartially considering the issue. This will include:

- reviewing the circumstances and facts of the complaint (or breach) and inviting all affected parties to provide information where appropriate and relevant.
- discussing the nature of the complaint (or breach) with the respondent and giving them an opportunity to respond.
- allowing an affected party to have a support person present during an interview (eg health and safety representative, however this does not include a lawyer acting in a professional capacity). This person is to provide support but is not to take an active part in the conversation.
- if, in the interest of securing an accurate assessment of the complaint, an investigation conducted by an external party is required, this can be requested by the person responsible for resolving the complaint.

4/ If a written agreement about the resolution of the complaint is prepared, all parties must agree it accurately reflects the resolution.

5/advise the complainant and all affected parties of the outcome within 7 working days of receiving the verbal or written complaint.

- If the Approved Provider or Nominated Supervisor decides not to proceed with the investigation after initial enquiries, he or she will give the complainant the reason/s in writing.
- keep appropriate records of the investigation and outcome, and store those records in accordance with our Privacy and Confidentiality Policy and Record Keeping and Retention Policy.
- monitor ongoing behaviour and provide support as required.
- ensure the parties are protected from victimisation.
- offer external review by a Tribunal or alternate organisation where employees, visitors and volunteers are unhappy with the outcome of the grievance procedure. Workplace bullying matters may be referred to the Fair Work Commission which can direct employers to take specific actions against workplace bullies or the Work Health and Safety (WHS) Regulator which may investigate whether WHS duties have been contravened.
- track complaints to rectify and identify recurring issues within the Service.
- notify the regulatory authority within 24 hours if a complaint alleges the safety, health or wellbeing of a child is being compromised. Please refer to our Incident, Injury, Trauma and Illness Policy.

Possible resolutions of a complaint may include:

- gaining an apology and a commitment that certain behaviour will not be repeated and monitor this over time.
- education and training in relevant laws, policies or procedures (eg bullying awareness, leadership skills).
- assistance in locating relevant counselling services.
- redressing any inequality which occurred to the complainant.
- providing closer supervision.
- modifying Service policies and procedures.
- developing new policies and procedures.
- disciplinary procedures including a verbal or written warning, termination of employment or transfer to a different position at the Service.

Outcomes will take into consideration relevant industrial relations principles and guidelines and make provision for procedural fairness. The Approved Provider or Nominated Supervisor will consider:

- the number of complaints (or breaches).
- the opportunities given to adhere to a policy or procedure and/or change behaviour.
- the opportunities given to respond to the allegations.

- the seriousness of the complaint (or breach), and whether it impacted the safety and welfare of other employees, volunteers or visitors.
- whether a policy, procedure or complaint is reasonable.

Union members may seek assistance or support from their trade union at any time.

Educators, staff, volunteers, families and visitors will not:

- get involved in complaints/ grievances that don't concern them. This is not ethical or helpful in managing the complaint
- raise complaints with an external complaints body, such as a court or Tribunal, without using our grievance procedures and appeal process first.

The Approved Provider or Nominated Supervisor will:

- discuss the issue with the complainant within 24 hours of receiving the verbal or written complaint
- properly, fairly, confidentially and impartially investigate the issue including:
 - thoroughly investigating the circumstances and facts and inviting all affected parties to provide information or respond where appropriate.
 - To encourage teamwork and respect, the issue may be discussed at an educator meeting if the privacy of the people involved can be protected.
 - inviting the complainant to have a support person present during an interview (eg health and safety representative, but not a lawyer acting in a professional capacity)
- provide all affected parties with a clear written statement (letter, email or SMS) of the outcome of the investigation within seven working days of receiving the verbal or written complaint.
 - If the resolution of the complaint involves a written agreement, all parties must agree with the wording etc.
 - If the Approved Provider or Nominated Supervisor decides not to proceed with the investigation after initial enquiries, he or she will give the complainant the reason/s in writing.
- keep appropriate records of the investigation and outcome, and store those records in accordance with our Privacy and Confidentiality Policy and Record Keeping and Retention Policy. Unsubstantiated complaints against educators/staff may be retained on file if the person has been given the opportunity to record a comment on the documentation
- monitor ongoing behaviour and provide support as required
- ensure the parties are protected from victimisation
- offer external review by a Tribunal or alternate organisation where employees, visitors and volunteers are unhappy with the outcome of the grievance procedure. Workplace bullying matters may be referred to the Fair Work Commission which can direct employers to take specific actions against workplace bullies or the Work Health and Safety (WHS) Regulator which may investigate whether WHS duties have been contravened
- request feedback on the grievance process using a questionnaire
- track complaints to identify recurring issues within the Service
- notify the regulatory authority within 24 hours if a complaint alleges the safety, health or wellbeing of a child is being compromised. Refer Incident, Injury, Trauma and Illness Policy.

Complaints that must be notified to Regulatory Authority

The Approved Provider or Nominated Supervisor will notify the regulatory authority through the online NQA ITS:

- within 24 hours of any complaints alleging that the safety, health or wellbeing of a child is being compromised at the service
- within 24 hours of any complaints that the National Law has been breached

This policy includes the following Appendices:

Summary: What to do if you have an issue or complaint with someone at Gloucester Preschool

Appendix 1 - Self Resolution Guide

Appendix 2 – Complaints Notification Form

Appendix 3 – Complaint Summary Form

Appendix 4 – Respondent’s Response Form

Appendix 5 – Complaints Resolution Form

Appendix 6 – Grievance Flow Chart

Appendix 7 – Self Complaint Management System

Sources

Education and Care Services National Regulations 2011

National Quality Standard

Early Years Learning Framework

Dealing with Employee Work-related Concerns and Grievances Policy and Guidelines: NSW DPC

Review

The policy and our code of conduct will be reviewed annually by:

- Management
- Employees
- Families
- Interested Parties

Reviewed by: Elizabeth Price

Position: Nominated Supervisor

Date: 21/07/2020

Signature:

Accepted by Committee Member:

Position:

Date:

Signature:

Previously reviewed: 19/06/2018

Date for next review: 21/07/2022